

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Angel Rendon	Team: Team # 1	CCRB Case #: 201206984	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Tuesday, 05/15/2012 7:30 PM, Wednesday, 05/16/2012 12:00 AM	Location of Incident: § 87(2)(b) and the PSA 8 stationhouse	18 Mo. SOL 11/15/2013	Precinct: 45		
Date/Time CV Reported Wed, 05/30/2012 8:39 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 05/30/2012 8:39 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Brian Query	05001	937315	PSA 8

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Frantz Demorin	03843	922234	PSA 8
2. POM Stanley Furman	21894	921352	PSA 8
3. POM Scott Kwiecinski	12653	945891	PSA 8
4. POM Christophe Cruz	00954	938296	PSA 8

Officer(s)	Allegation	Investigator Recommendation
A . SGT Brian Query	Abuse: On May 15, 2012, at § 87(2)(b) in the Bronx, SGT Brian Query refused to provide his name and shield number to § 87(2)(b)	A . Unsubstantiated
B . SGT Brian Query	Off. Language: On May 16, 2012, at the PSA 8 stationhouse in the Bronx, SGT Brian Query made remarks to § 87(2)(b) based upon her sex.	B . Unsubstantiated

Case Summary

On May 30, 2012, § 87(2)(b) filed the following complaint with the CCRB using the Call Processing System (encl. 3a-3b).

On May 15, 2012, at approximately 7:30 p.m., at § 87(2)(b) in the Bronx, § 87(2)(b) was arrested following a domestic dispute. On May 16, 2012, at approximately 8:00 p.m., § 87(2)(b) retrieved vouchered property at the PSA 8 stationhouse. The following allegations resulted.

Allegation A – Abuse of Authority: On May 15, 2012, at § 87(2)(b) in the Bronx, SGT Brian Query refused to provide his name and shield number to § 87(2)(b).

Allegation B – Offensive Language: On May 16, 2012, at the PSA 8 stationhouse in the Bronx, SGT Brian Query made remarks to § 87(2)(b) based upon her sex.

§ 87(2)(g)

On July 16, 2012, § 87(2)(b) declined to mediate this complaint § 87(2)(b). On April 9, 2013, this case was reassigned to the undersigned investigator following Inv. Jasmine Miranda's departure from the agency.

Results of Investigation

Civilian Statement:

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) old black female, § 87(2)(b).
- § 87(2)(b) declined to provide employment information to the CCRB.

CCRB Statement (encl. 3a-4p):

On May 30, 2012, § 87(2)(b) provided a statement using the Call Processing System (encl. 3a-3b). On June 4, 2012, § 87(2)(b) provided a phone statement (encl. 4a-4b). On July 16, 2012, § 87(2)(b) was interviewed at the CCRB (encl. 4e-4i). § 87(2)(b) § 87(2)(g)

On May 15, 2012, at § 87(2)(b) within the Throgs Neck Houses NYCHA development in the Bronx, § 87(2)(b) became involved in a dispute with her brother, § 87(2)(b) and called 911. § 87(2)(b) did not know if the police arrived by vehicle or by foot and recalled there being about five to six officers in total when they responded sometime between 5:00 p.m. and 6:00 p.m. SGT Brian Query (identified by the investigation and described as a Hispanic male with a dark complexion, who stood approximately 5'0", had a heavyset build, was in his early 30s, had brown hair styled in a small afro, brown eyes, and was dressed in uniform with chevrons) walked into the apartment building lobby and spoke to § 87(2)(b).

SGT Query asked § 87(2)(b) for her identification and if she was currently taking any medications. § 87(2)(b) handed SGT Query her Benefits card, which SGT Query placed in his pocket. § 87(2)(b) then placed her groceries, which she had purchased earlier that day and taken with her on her way out of the building, on the bench outside of the entrance to the apartment building. When she stepped outside the building, § 87(2)(b) noticed PO Scott Kwiecinski (identified by the investigation and described as a

white male, who stood 5'7", had a husky build, was in his early 20s, had brown hair and brown eyes, was dressed in uniform, and had a name that sounded like "Wolzowski"). § 87(2)(b) told SGT Query that she was not comfortable speaking about her medication and medical history and said that she preferred to speak about the injuries she sustained because of her brother. SGT Query then began to handcuff § 87(2)(b) without asking her any more questions. SGT Query told § 87(2)(b) that § 87(2)(b) had a counter complaint that she had hit him on his chest with a door. § 87(2)(b) then asked for SGT Query's name. As she asked this, she moved closer to SGT Query to see his name and badge number. SGT Query took his right hand and covered his shield. In her intake statement and phone statement, § 87(2)(b) did not raise this allegation.

SGT Query brought § 87(2)(b) outside to the corridor, walked her to a marked patrol car, and placed her within the vehicle. § 87(2)(b) did not know which officers drove her to the precinct as she was crying and had puffy eyes. There were about three more officers present, PO3, PO4 and PO5. § 87(2)(b) was unable to describe them as she did not interact with them and did not pay attention to them. § 87(2)(b) was removed to the PSA 8 stationhouse for arrest processing.

On the following day, May 16, 2012, at approximately 7:40 p.m., § 87(2)(b) returned to the PSA 8 stationhouse and spoke to PO Christopher Cruz (identified by the investigation and described as a Hispanic male with a light complexion, who stood 5'9", was in his late 20s, had black hair, thick eyebrows, and was dressed in uniform). During her CCRB interview, § 87(2)(b) was asked if she obtained PO Cruz's name and shield number. § 87(2)(b) answered that she was unable to obtain PO Cruz's name or shield number because he covered his shield and nameplate but did not state that she requested the information from PO Cruz. In her intake statement and phone statement, § 87(2)(b) made no mention of attempting to obtain PO Cruz's name or shield number. § 87(2)(b) told PO Cruz that her cell phone was left in the precinct while she was there and told him that she was there to pick it up. PO Cruz told § 87(2)(b) to return in about 20 minutes. § 87(2)(b) went to a bench and laid down to wait. At approximately 8:00 p.m., § 87(2)(b) asked PO7 (described as a white male, who stood 6'0", had a heavysset build, was in his mid-40s, and was dressed in uniform with a white shirt and a gold shield) for assistance in retrieving her cell phone. PO7 passed the paperwork along to PO Cruz, who handed it to PO Stanley Furman (identified by the investigation and described as a Hispanic male with a dark complexion, who stood 5'9", had a slim build, was in his mid to late 20s, wore glasses, and was dressed in uniform). PO Furman quickly retrieved § 87(2)(b)'s cell phone.

Sometime after 8:00 p.m., SGT Query suddenly brushed past § 87(2)(b) whose back was turned, and greeted a group of other officers. § 87(2)(b) did not know where SGT Query came from. There were about fifteen officers moving about the stationhouse, along with some civilian employees. PO7 was no longer present. PO Furman was holding § 87(2)(b)'s cell phone in his hand while greeting SGT Query. § 87(2)(b) was standing by and said, "Excuse me, gentlemen? Would it be okay if I received my property now?" SGT Query replied, "Bitch, oh no you didn't. Oh no, she didn't just tell us this! Do you know that this man works for me? You're going to have to wait." § 87(2)(b) stated, "Not to be rude, but that's not true. Both of you work for the City of New York." SGT Query said, "This bitch doesn't know how to learn." SGT Query proceeded to take § 87(2)(b)'s right hand. PO Cruz stepped to the side of § 87(2)(b) and took § 87(2)(b)'s other hand and assisted in trying to handcuff § 87(2)(b). § 87(2)(b) became rigid, stood still and did not allow herself to be handcuffed easily. § 87(2)(b) began making comments to SGT Query, calling him "fat" and telling him "If you don't stop eating those potato chips, you're not going to be here much longer" and "You must really enjoy handcuffing women because that's the only time you get to put your hands on one." After she was handcuffed, § 87(2)(b) offered to apologize to SGT Query and "call it a wash." SGT Query did not accept § 87(2)(b)'s apology. § 87(2)(b) was taken into the holding cell and remained in there for about fifteen to thirty minutes. § 87(2)(b)

§ 87(2)(b) was then issued two summonses for § 87(2)(b). The summonses did not say anything other than “§ 87(2)(b),” and had PO Furman’s name on both of the summonses. After this, PO Furman opened the holding cell gate and then returned § 87(2)(b)’s cell phone.

After § 87(2)(b) was released from the holding cell, she went to speak to PO9 (described as a white male, who stood 6’0” tall, had a heavyset build, was in his mid-40s, and was dressed in uniform), who appeared to be the assigned desk officer. § 87(2)(b) asked PO9 why she was issued the summonses. PO9 escorted § 87(2)(b) outside the stationhouse to speak with her. PO9 told § 87(2)(b) that she was looking for a “long, drawn-out answer” and told her to contact the CCRB. PO9 also gave § 87(2)(b) SGT Query’s name and added that if she did file a complaint with the CCRB, it would be seen as retaliation against SGT Query.

Witness: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b)-old black female, who stands § 87(2)(b)
- § 87(2)(b) is employed by the NYPD as a Senior Police Administrative Aide. § 87(2)(b) § 87(2)(b)

CCRB Statement (encl. 5a-5f):

On August 29, 2013, § 87(2)(b) was interviewed at the CCRB. On May 16, 2012, at approximately 8:00 p.m., SPAA § 87(2)(b) was working in the 124 room of the PSA 8 stationhouse. The 124 room is located behind the front desk and has its own door, which is usually left open. The area behind the front desk of the stationhouse is not open to public access. From SPAA § 87(2)(b)’s position inside the 124 room, any noise coming from the front desk would have to be very loud for her to hear it. There is usually another civilian employee working in the 124 room.

SPAA § 87(2)(b) walked out of the stationhouse either to take her meal or run an errand. Outside the stationhouse, SPAA § 87(2)(b) saw § 87(2)(b) who appeared upset. § 87(2)(b) told SPAA § 87(2)(b) that she had been inside the stationhouse earlier to retrieve property but she had been told to come back in 30 to 45 minutes due to a malfunction with a computer system. (SPAA § 87(2)(b) was unaware of her presence prior to this point.) § 87(2)(b) believed that she had been lied to but SPAA § 87(2)(b) reassured § 87(2)(b) that there was actually a malfunction with the computer system. § 87(2)(b) asked SPAA § 87(2)(b) what she should do. SPAA § 87(2)(b) suggested that § 87(2)(b) wait inside a nearby park, and then left.

After some period of time under an hour, SPAA § 87(2)(b) returned. SPAA § 87(2)(b) saw § 87(2)(b) standing by the front desk in handcuffs with SGT Brian Query. SPAA § 87(2)(b) did not recall who the desk officer was. SPAA § 87(2)(b) believed that PO David Chach might have been assigned to the telephone switchboard, which is located directly next to the front desk, but she was not certain. SPAA § 87(2)(b) did not recall seeing an officer dressed in a white uniform shirt.

§ 87(2)(b) was more calm now. SPAA § 87(2)(b) did not recall hearing § 87(2)(b) ask an officer for his name and shield number. SPAA § 87(2)(b) did not see an officer cover his nameplate or shield in response to any such request. SPAA § 87(2)(b) did not hear SGT Query refer to § 87(2)(b) as a “bitch.” SPAA § 87(2)(b) continued past the front desk, returned to the 124 room, and did not see § 87(2)(b) again.

NYPD Statements (encl. x):

Witness Officer: PO SCOTT KWIECINSKI

- PO Kwiecinski is a § 87(2)(b) [REDACTED]
- On May 15, 2012, PO Kwiecinski worked from 3:00 p.m. to 3:25 a.m. the following day and was assigned to a conditions unit. PO Kwiecinski was partnered with PO Jose Collazo, dressed in uniform, and assigned marked patrol car #9052. On May 16, 2012, PO Kwiecinski worked from 7:00 a.m. to 12:50 p.m.

Memo Book (encl. 6a-6d):

On May 15, 2012, at 7:20 p.m., PO Kwiecinski backed a sergeant on a radio run for a 10-34 (assault in progress) at § 87(2)(b) [REDACTED] in the Bronx. At 7:25 p.m., PO Kwiecinski arrived at the location. At 7:30 p.m., two people were arrested for § 87(2)(b) [REDACTED] in regards to a 10-52F (family dispute) as cross complainants. At 7:45 p.m., PO Kwiecinski arrived at the 84th Precinct stationhouse where he prepared two UF-61 Complaint Reports, two arrest reports, two medical treatment of prisoner reports, and two BLAP reports. On May 16, 2012, at 9:00 a.m., PO Kwiecinski spoke to an assistant district attorney. At 10:10 a.m., it was determined that the ADA would decline to prosecute due to uncooperative complainant. At 11:00 a.m., PO Kwiecinski prepared decline-to-prosecute paperwork. At 11:45 a.m., both prisoners were released. At 12:50 p.m., PO Kwiecinski ended his tour.

CCRB Statement (encl. 6e-6g):

On June 21, 2013, PO Kwiecinski was interviewed at the CCRB. On May 15, 2012, at approximately 7:25 p.m., PO Kwiecinski and PO Collazo backed up SGT Query and his partner, PO Kwiecinski did not recall who, on a job for an assault in progress at § 87(2)(b) [REDACTED]. The incident involved a domestic dispute with cross-complainants, so both § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED] were arrested. While at that location, PO Kwiecinski never saw SGT Query cover his nameplate in response to a request by § 87(2)(b) [REDACTED] for his name. The following day, after § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] were released from Bronx Central Booking, PO Kwiecinski ended his tour and was not on duty or at the stationhouse when § 87(2)(b) [REDACTED] returned later that evening. At no point during his involvement with § 87(2)(b) [REDACTED]'s arrest did PO Kwiecinski hear SGT Query call § 87(2)(b) [REDACTED] a "bitch."

Subject Officer: SGT BRIAN QUERY

- SGT Query is a § 87(2)(b) [REDACTED].
- On May 15, 2012, SGT Query worked from 2:00 p.m. to 11:57 p.m. and was assigned as the PSA 8 patrol supervisor. SGT Query was partnered with PO Scott Kwiecinski, dressed in uniform, and assigned a marked patrol car. On May 16, 2012, SGT Query worked from 2:00 p.m. to 11:57 p.m. and was assigned as the PSA 8 patrol supervisor.

Memo Book (encl. 7a-7c):

On May 15, 2012, at 7:20 p.m., there was a radio run for a 10-34F (assault in progress) at [unspecified address] on Sampson Avenue on the first floor. At 7:45 p.m., two individuals were under arrest by PO Scott Kwiecinski. At 11:57 p.m., SGT Query ended his tour. On May 16, 2012, at 8:15 p.m., SGT Query returned to the PSA 8 stationhouse. At 8:25 p.m., SGT Query resumed patrol.

CCRB Statement (encl. 7e-7f):

On October 5, 2012, SGT Query was interviewed at the CCRB. SGT Query was not able to recall § 87(2)(b) ever interacting with § 87(2)(b) in any way or using any profanity to § 87(2)(b). When the incident was described to SGT Query and a picture of § 87(2)(b) was shown to SGT Query, he was unable to recall who she was or any involvement with her on May 15, 2012 or May 16, 2012. SGT Query did not remember issuing any summonses, and stated that as a sergeant and patrol supervisor for that day, he does not issue summonses. SGT Query was shown the command log entry in which § 87(2)(b) was listed as arrested for disorderly conduct and could not recall the incident and stated that the entry made in the command log was not his handwriting. SGT Query was also shown the roll call for the incident date and recalled instances when he worked with PO Stanley Furman, but could not recall working with him on the incident date.

Subject Officer: PO CHRISTOPHER CRUZ

- *PO Cruz is a § 87(2)(b)*
- *On May 16, 2012, PO Cruz worked from 3:00 p.m. to 11:35 p.m. and was assigned to the PSA 8 stationhouse telephone switchboard. PO Cruz was dressed in uniform and working inside the stationhouse.*

Memo Book (encl. 8a-8b):

At 3:00 p.m., PO Cruz reported to his post as the PSA 8 assistant desk officer. At 11:35 p.m., PO Cruz ended his tour.

CCRB Statement (encl. 8d-8e):

On September 16, 2013, PO Cruz was interviewed at the CCRB. On May 16, 2012, PO Cruz was assigned to the PSA 8 stationhouse telephone switchboard, a post located alongside the desk officer's position behind the front desk. (Nominally, on the PSA 8 roll call and in his memo book, PO Cruz was assigned as the assistant desk officer.) PO Cruz's duties would have consisted of answering phones, making entries in various command logs, and could have included retrieving vouchered property, among various other tasks. Despite being shown a photo of § 87(2)(b) and being apprised of details surrounding her allegations, PO Cruz did not recall this incident.

Witness Officer: PO STANLEY FURMAN

- *PO Stanley Furman is a § 87(2)(b)*
- *On May 15, 2012, PO Furman was assigned to the CRV Vehicle and was working in Battery Park, Manhattan. PO Furman did not have a partner, was in uniform and worked from 12:30 p.m. to 1:30 a.m.*
- *On May 16, 2012, PO Furman was SGT Wheeler's operator in marked van #9329 from 3:00 p.m. to 11:35 p.m. PO Furman was in uniform.*

Memo Book (encl. 9a-9e):

At 8:15 PM on May 16, 2012, PO Furman wrote a 'C' Summons to § 87(2)(b). There were no flysheet notes regarding § 87(2)(b)'s summonses.

Summons § 87(2)(b) and § 87(2)(b) (encl. 9f):

PO Furman issued the above-referenced summonses to § 87(2)(b). Both summonses were issued at the PSA 8 stationhouse on May 16, 2012 at approximately 8:15 p.m. § 87(2)(b)

CCRB Statement (encl. 9h-9j):

On February 21, 2013, PO Furman was interviewed at the CCRB. PO Furman did not interact with § 87(2)(b) on May 15, 2012, as he was not in the Bronx for his entire tour. PO Furman was assigned to CRV Surge, which is an out-of-command assignment. At no time was he in the confines of his command on May 15, 2012.

On May 16, 2012, when PO Furman was at the PSA 8 stationhouse, he did not know where SGT Wheeler was because they had separated. PO Furman and SGT Query were having a conversation in the stationhouse, but he could not remember what he and SGT Query were speaking about. PO Furman and SGT Query were speaking for approximately five minutes. PO Furman recalled § 87(2)(b) speaking to SGT Query, but he did not recall where she had come from nor did he recall what she may have been speaking to SGT Query about. § 87(2)(b) was “loud and boisterous” when she was speaking to SGT Query. § 87(2)(b) had been screaming for a few seconds. PO Furman could not remember if § 87(2)(b) was saying anything in particular while she was being loud and boisterous. PO Furman defined § 87(2)(b)'s boisterousness by her yelling. No physical action took place as she was yelling. PO Furman and SGT Query both told § 87(2)(b) to please calm down. § 87(2)(b) did not calm down upon their request; she became louder. PO Furman could not remember if § 87(2)(b) was yelling anything in particular or making any gestures. SGT Query then ordered PO Furman to write § 87(2)(b) a summons. PO Furman wrote § 87(2)(b) two summonses, one for subsection 1 of the disorderly conduct statute and the other for subsection 3. When asked if PO Furman knew what those subsections outlined, PO Furman stated that he did not know. During his CCRB interview, PO Furman was shown a copy of the two summonses issued to § 87(2)(b). PO Furman's legal representative read the disorderly conduct summons for subsection 3 stated “using or making an obscene gesture.” PO Furman tried to read his own handwriting on the disorderly conduct summons with subsection 1 and believed it stated, “disorderly conduct engaging in loud and boisterous behavior.”

§ 87(2)(b) was placed in a holding cell and remained there until PO Furman wrote out her summonses. During this time, while § 87(2)(b) was waiting for PO Furman to write the summonses, she calmed down. PO Furman could not recall if § 87(2)(b) was placed in handcuffs before being taken to the holding cell. PO Furman did not know if there were any other people inside of the holding cell along with § 87(2)(b). PO Furman did not know if SGT Query or other stationhouse personnel gave § 87(2)(b) any commands before she calmed down. PO Furman did not know of any discussion about a cell phone between § 87(2)(b) and SGT Query or § 87(2)(b) or himself. PO Furman did not know if SGT Query ever told § 87(2)(b) “Bitch, oh no, you didn't” or “This bitch doesn't know how to learn.” PO Furman was not there if that interaction did occur between SGT Query and § 87(2)(b). § 87(2)(b) did not hear those statements made by SGT Query, and did not hear any officer direct profanity at § 87(2)(b) while she was inside the stationhouse. PO Furman did not hear § 87(2)(b) ask any officer for their name and shield information while in the stationhouse. PO Furman did not hear § 87(2)(b) ask SGT Query for his name and shield number and PO Furman did not hear § 87(2)(b) ask him for SGT Query's name and shield number.

Witness Officer: SGT FRANTZ DEMORIN

- SGT Frantz Demorin is a § 87(2)(b).
- On May 15, 2012, SGT Demorin worked as patrol supervisor with PO Cruz from 2:50 p.m. to 11:35 p.m. SGT Demorin was in uniform and was on duty in car number 9062.
- On May 16, 2012, SGT Demorin worked as the desk officer, was in uniform and worked from 2:50 p.m. to 11:47 p.m.

Memo Book (encl. 10a-10c):

On May 15, 2012 at 5:50 p.m., SGT Demorin was at VIPER 4, which is located at Bronx River Houses at East 174th Street in the Bronx. At 6:21 PM, SGT Demorin inspected two officers, PO Costa and PO Barbado. At 7:30 p.m., SGT Demorin returned to the PSA8 stationhouse. On May 16, 2012, SGT Demorin noted his assignment as the desk officer.

CCRB Statement (encl. 10e-10f):

On May 15, 2012, SGT Demorin did not interact with § 87(2)(b) and stated that he did not know who § 87(2)(b) was. SGT Demorin was at Bronx River Houses, which is nowhere near § 87(2)(b) in the Bronx. SGT Demorin was informed that § 87(2)(b) was at the PSA 8 stationhouse to retrieve property. The picture of § 87(2)(b) that was taken after her interview was shown to SGT Demorin, who did not recognize her. SGT Demorin was also told that § 87(2)(b) spoke to SGT Query about obtaining her cell phone as SGT Query and another officer were conversing inside of the PSA 8 stationhouse. SGT Demorin was not present for the conversation that § 87(2)(b) allegedly had with SGT Query. SGT Demorin did not hear § 87(2)(b) address SGT Query in the stationhouse and stated that he may have seen SGT Query coming in and out of the stationhouse as he was working on the incident date, but he did not remember the incident taking place in the stationhouse.

SGT Demorin was shown a copy of the command log and went through it to see when he signed in or out of the command log. SGT Demorin was shown § 87(2)(b)'s entry for May 15, 2012 and May 16, 2012 and identified his entries based on his handwriting, specifically 3:30 PM, 3:35 PM, 3:40 PM, 4:15 PM and others. SGT Demorin perused through the command log to see if he left the desk or came back at any specific timeframe. SGT Demorin signed out on the command log at 11:10 PM. SGT Demorin was shown the May 16, 2012 command log entry at 8:15 PM, indicating § 87(2)(b)'s handcuffing, detention and release with a summons. SGT Demorin was asked if he saw § 87(2)(b)'s arrest as she was in the PSA8 stationhouse, as well as if he was present for that incident. SGT Demorin stated that he could not make a connection between himself and the incident and he could not remember the incident in the stationhouse.

SGT Demorin was informed that § 87(2)(b) may have become upset as she was trying to retrieve her cell phone from the stationhouse, which led to a ruckus in the stationhouse and resulted in § 87(2)(b)'s arrest in the stationhouse, her being placed in the holding cell and released with a summons. SGT Demorin was then asked if he recalled anything loud going on in the stationhouse or being called back to the holding cell area during that time. SGT Demorin stated that he could not remember anything specific like that on May 16, 2012 and also said that there are a lot of arrestees coming in and out of the stationhouse and that a situation like § 87(2)(b)'s was not an unusual occurrence.

SGT Demorin did not hear SGT Query refer to § 87(2)(b) as a "bitch" when he was speaking to another officer inside the PSA 8 stationhouse, specifically SGT Query telling § 87(2)(b) "Bitch, oh, no, you didn't!" and "this bitch doesn't know how to learn." SGT Demorin did not see any officer

cover his nameplate and badge while he was in the stationhouse.

Summonses for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[§ 87(2)(b)]

Status of Civil Proceedings

- [§ 87(2)(b)] has not filed a Notice of Claim with the City of New York as of May 17, 2013 with regard to the incident.

Civilian's Criminal History:

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[§ 87(2)(b)]

Civilian's CCRB History (encl. 2a):

- This is the first CCRB complaint filed by [§ 87(2)(b)]

Subject Officer's CCRB History (encl. 1a):

- SGT Query has been a member of the service for eight years and there are no substantiated CCRB allegations against him.

Conclusion

Identification of Subject Officer

SGT Query was identified by name by [§ 87(2)(b)] and PO Furman.

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: On May 15, 2012, at [§ 87(2)(b)] in the Bronx, SGT Brian Query refused to provide his name and shield number to [§ 87(2)(b)]

Allegation B – Offensive Language: On May 16, 2012, at the PSA 8 stationhouse in the Bronx, SGT Brian Query made remarks to [§ 87(2)(b)] based upon her sex.

According to [§ 87(2)(b)] on May 15, 2012, when she was arrested at [§ 87(2)(b)] she verbally requested SGT Query's name and shield number and he responded by covering his shield and nameplate from view. On the following day, May 16, 2012, at the PSA 8 stationhouse, while attempting to retrieve vouchered property, [§ 87(2)(b)] interrupted a conversation SGT Query was having to inquire about retrieving her property and SGT Query replied, "Bitch, oh no you didn't. Oh no, she didn't just tell us this! Do you know that his man works for me? You're going to have to wait... This bitch doesn't know how to learn."

SGT Query had no recollection of his interactions with [§ 87(2)(b)] and none of the officers interviewed recalled or corroborated [§ 87(2)(b)]'s allegations.

[§ 87(2)(b), § 87(2)(g)]

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date